

25STCV38754 25STCV38754

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Case Number: 25STCV38754 Hearing Date: July 1, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

PING TSAI,

Plaintiff,

v.

MERCK & CO.,
INC., et al.,

Defendants.¿

¿¿¿ Case No. 25STCV38754

¿¿¿¿¿

¿¿¿ Hearing Date: July
1, 2026

¿¿¿

Time:¿¿¿¿¿¿¿¿¿¿¿¿¿¿¿¿ 9:00 a.m.¿

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¿¿¿[Tentative] ORDER RE:¿

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¿¿¿ SPECIALLY-APPEARING
DEFENDANT PTI UNION, LLC'S MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF
PERSONAL JURISDICTION

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I.

Background

On December 31, 2025, Plaintiff Ping Tsai
filed her complaint for personal injury alleging she developed mesothelioma
from direct exposure to asbestos contaminated talc products in California throughout
her life. As against specially appearing Defendant PTI Union, LLC ("PTI" or
"Defendant") Plaintiff alleged that she was exposed to asbestos through her use
of Dr. Scholls foot powder which was, at various times, manufactured by PTI.

On February 13, 2026, PTI filed its motion to quash arguing
that it did not perform any activities in California such that it could be
subject to jurisdiction in California. Accordingly, PTI argues that Plaintiff is

required to present evidence to show how PTI purposefully availed itself of California and that Plaintiff's causes of action arise from or relate to PTI's California contacts.

On March 27, 2026, Plaintiff filed opposition arguing she presents sufficient evidence that PTI purposefully availed itself of the California market by intentionally selling its products nationwide. Specifically, Plaintiff relies on a declaration detailing her exposure to Dr. Scholl's foot powder between 2008 and 2019, and discovery responses from and an order issued in the Maricich case in Alameda county to support her contentions here. However, other than the responses to special interrogatories, the evidence produced in the Maricich case was not produced by Plaintiffs in their opposition because it is subject to a protective order. Nevertheless, Plaintiff argues that this evidence shows that PTI purposefully availed itself of California and that her causes of action arise from or relate to PTI's sale of products to California. Plaintiff alternatively requests jurisdictional discovery. In a supplemental declaration filed on April 3, 2026, Plaintiff presented evidence of an order denying PTI's writ of mandate in the Maricich case.

On April 7, 2026, PTI filed its reply. PTI argues that the evidence presented fails to show that this court has personal jurisdiction over it. PTI argues that the Maricich case, including the Court of Appeal's denial of its writ of mandate, is inconsistent with California and Supreme Court precedent dealing with personal jurisdiction. PTI maintains that the evidence presented in the Maricich case was therefore insufficient to show that PTI purposefully availed itself of California, and that the same evidence will be insufficient here. For similar reasons, PTI argues that Plaintiff is not entitled to conduct jurisdictional discovery.

Plaintiff failed to present sufficient evidence to show that PTI purposefully availed itself of California. The fact that our sister court in Alameda denied PTI's motion to quash in the Maricich case is not admissible evidence showing that PTI is subject to jurisdiction. The evidence that the Maricich court principally relied upon in evaluating PTI's purposeful availment of California is not before this court. The evidence presented in support of Plaintiffs' motion is not sufficient by itself to support jurisdiction in this case. However, the fact that the evidence presented in the Maricich case was sufficient for the court to find that the plaintiffs there presented sufficient evidence to support a finding of

jurisdiction is sufficient evidence to support granting a continuance to conduct jurisdictional discovery here.

On April 17, 2026, the court continued this matter to allow Plaintiffs to conduct jurisdictional discovery.

On June 3, 2026, Plaintiffs filed a supplemental opposition, arguing that PTI purposefully availed itself of California because it purposefully availed itself of the entire United States market, specifically including the California market for Dr. Scholl's talc.

On June 17, 2026, PTI filed a supplemental reply, arguing that it did not purposefully avail itself of California because it was not PTI's own choice to engage with the California forum.

Plaintiff failed to present sufficient evidence to show that PTI Union, LLC purposefully availed itself of the California market. Accordingly, PTI Union's motion to quash is granted.

II.

Evidentiary Objections:

Plaintiff's

Objections:

Overruled:

1. Noland Decl. ¶ 10 "the Dr.

Scholl's® Product Owners—not PTI Union, LLC—provided the product formulations and specifications for their products including performing the research and development, designating the raw materials, the suppliers and the content and design of the labeling as the owners of the Gold Bond® and Dr. Scholl's® products, respectively" does not lack personal knowledge, is not hearsay, and is not a violation of the secondary evidence rule. Mr. Noland's declaration states: "I have been the Manager of PTI Union at all relevant time periods. As a result of my position as the Manager at PTI Union, LLC, I have acquired knowledge of the corporate history and operations of PTI Union, LLC as set forth below." (Noland Decl. ¶ 1.) Accordingly, his position as the manager of PTI Union provides him a sufficient basis for personal knowledge regarding the

transactions conducted by PTI, including with the Dr. Scholl's entities.

Mr. Noland's testimony is a declaration used in lieu of live testimony as is expressly permitted under Code of Civil Procedure sections 2009 and 2015.5 as well as California Rules of Court, rule 3.1306. Therefore, his declaration is not inadmissible hearsay.

Although another way to present the facts in Mr. Noland's declaration would be to provide evidence of the contracts between PTI Union and the Dr. Scholl's entities, Mr. Noland's testimony is neither hearsay within hearsay nor secondary evidence because Mr. Noland has personal knowledge of the business transactions and relationships that these contracts created. As such, his testimony is properly before the court. Plaintiff's objections are overruled.

2-8. Same as no. 1.

III.

Discussion

A.

Legal Standards

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)¿

When a

defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner v. Touchstone Wireless Repair & Logistics, LP (2016) 5 Cal.App.5th 215, 222.)

A defendant is subject to

a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s]' to defend actions 'based on' products causing injury there." (Id. at p. 364.)

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B.

General Jurisdiction

General jurisdiction is not at issue here. General jurisdiction over a corporate defendant exists when the corporation's "affiliations with the State are so 'continuous and

systematic' as to render it essentially at home in the forum State." (Daimler, supra, 571 U.S. at p. 139.) The paradigmatic examples of these affiliations are the locations where the defendant is incorporated and of the defendant's principal place of business. (Daimler, supra, 571 U.S. 117, at p. 137.)

There does not appear to be any contention that PTI is properly subject to general jurisdiction in California. The undisputed evidence establishes that PTI Union, LLC is a North Carolina LLC with its principal place of business in Missouri. (Noland Decl. ¶ 3.) Plaintiff does not argue that PTI Union is subject to general jurisdiction in California. (Opposition at p. 5 ["PTI Union, LLC ('PTI') is subject to California's specific personal jurisdiction in this case."].) Therefore, general jurisdiction is not at issue here. As such, the court next considers whether Plaintiff presented sufficient evidence to show that PTI is subject to specific jurisdiction in California.

C.

Specific Jurisdiction

A court may exercise specific jurisdiction over a plaintiff when three elements are satisfied: "(1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the controversy is related to or "arises out of" [the] defendant's contacts with the forum' [citation]; and (3) " "the assertion of personal jurisdiction would comport with 'fair play and substantial justice' " [citation.]" (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

1. Purposeful

Availment

Purposeful availment "focuses on the defendant's intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on his contacts with the forum." (Pavlovich, supra, 29 Cal.4th at p. 269.) "California courts have consistently concluded that a foreign corporation purposefully avails itself of the benefits of the California forum when it knowingly sells and ships its products to California

businesses for use in California.” (LG Chem, Ltd. v. Superior Court of San Diego County (2022) 80 Cal.App.5th 348, 363.)

Plaintiff

argues that she presents sufficient evidence to show that PTI is subject to specific jurisdiction in California. Plaintiff argues: “Here, following the jurisdictional discovery that was done in the Alameda County Superior Court Maricich case, the undisputed evidence shows that Defendant PTI Union, LLC (‘PTI’) is subject to California’s specific personal jurisdiction in this case. In sum, PTI purposefully availed itself of the entire United States market, specifically including the California market, for Dr. Scholl’s brand talc; this California-based talc/asbestos-related mesothelioma lawsuit arises out of and/or relates to those contacts; and PTI fails to show that the exercise of jurisdiction here would be unreasonable. Accordingly, this Court should deny PTI’s motion to quash.” (Opposition at p. 5.)

As to

purposeful availment specifically, Plaintiff argues that PTI’s responses to special interrogatories and requests for production in the prior Maricich case are sufficient to establish purposeful availment. However, as to the requests for production, Plaintiff recognized that “Plaintiff cannot use those PTI-produced documents, because they remain confidential pursuant to the Maricich protective order; and, likewise pursuant to that order, copies of those confidential documents cannot be used beyond the Maricich case.” (Opposition at p. 8, Stewart Decl. Ex. 3.) As such, Plaintiff relies on Judge McKinney’s order analyzing the documents produced subject to the protective order in lieu of the underlying evidence itself.

In

reply, PTI maintains that this evidence is insufficient to show that it is subject to personal jurisdiction in California. PTI maintains that Judge McKinney incorrectly determined that PTI was subject to personal jurisdiction in California, and that the evidence presented fails to support this court’s exercise of jurisdiction over it. Curiously, PTI does not object to the fact that Plaintiff relies on a minute order summarizing the evidence presented in the Maricich case rather than the underlying evidence. Instead, PTI argues that this evidence is insufficient as a matter of law to support a California court’s exercise of jurisdiction over it.

In the

supplemental opposition, Plaintiff points to evidence that PTI contractually manufactured Dr. Scholl's talc for the entire United States market and manufactured these products to comply with California testing and reporting requirements to show that PTI purposefully availed itself of California. Plaintiff argues that PTI "actively cooperated with Meck and Bayer to satisfy the California market for Dr. Scholl's talc." (Supp. Opp. at p.5.)

In the supplemental reply, PTI maintains that the evidence discovered through jurisdictional discovery is insufficient to establish that PTI purposefully availed itself of California because the evidence "adds no new fact showing that Union itself purposefully directed activities toward California specifically." (Supp. Reply at p.3, emphasis in original.) PTI also argues that the evidence PTI acted to comply with California regulations fails to show purposeful availment because it was acting under the direction of its customers, not by its own choice. (Id. at p.4.)

Previously, the evidence Plaintiff submitted with her original opposition was insufficient to meet her burden to show that PTI purposefully availed itself of the California market. Judge McKinney's decision in the Maricich case is not evidence and may not be relied upon to support the assertion that PTI is subject to jurisdiction in California. Plaintiff attaches Judge McKinney's order as exhibit 4 to the Stewart declaration and relies on the analysis from that case extensively in her opposition. (Opposition at pp. 8-10.) However, Judge McKinney's determination that PTI is subject to personal jurisdiction in California was predicated on the evidence and authority presented to the court in the Maricich case and in no way binds this court. The order itself is not admissible evidence of any of the underlying facts which Judge McKinney relied upon in evaluating whether there was sufficient evidence to support personal jurisdiction in California. The court did not consider Judge McKinney's order as admissible evidence on this motion.

Similarly, the court did not consider PTI's responses to requests for production in the Maricich case because the jurisdictional discovery performed by the plaintiffs in the Maricich case was performed subject to a protective order (See Stewart Decl. Ex. 3). PTI's responses the Maricich plaintiffs' requests for production at best establish that some responsive documents for requests including "All DOCUMENTS comprising YOUR contracts or agreements with MERCK

regarding YOUR manufacturing, packaging, bottling, labeling, and/or supplying of DR. SCHOLLS for MERCK” “All DOCUMENTS reflecting or regarding the territorial scope (i.e., the entire United States market, or some lesser area) of DR. SCHOLLS brand talc powder products YOU SUPPLIED to MERCK” and “All DOCUMENTS reflecting or regarding what was the percentage of United States product requirements that YOU satisfied (i.e., 100 percent exclusivity, or some lesser percentage) relating to DR. SCHOLLS brand talc powder products YOUR SUPPLIED to MERCK” exist and have previously been produced by PTI. (Stewart Decl. Ex. 2 at pp. 7, 9, 12.) That these documents were produced does not establish the substantive facts that support the exercise of jurisdiction in this case. Therefore, the evidence of the existence of some responsive documents fails to establish relevant evidence that PTI is subject to jurisdiction in California.

Plaintiff

also presented her declaration and PTI's special interrogatory responses in the Maricich case. Ms. Tsai's declaration establishes that she was exposed to Dr. Scholl's foot powder through her husband's use of the product from 1985 onwards, including during the 2008 to 2019 period during which time it is undisputed PTI was responsible for manufacturing this product. (Stewart Decl. Ex. 5, Tsai Decl. ¶¶ 3-5.) However, the fact that Ms. Tsai was exposed to Dr. Scholl's has limited bearing on whether PTI ever intentionally made business contacts with the California market. Although her exposure to Dr. Scholl's products sold in California would strongly support a finding of relatedness if it was shown that PTI purposefully availed itself of the California market, the fact that Ms. Tsai was exposed to Dr. Scholl's in California does not establish the nature of PTI's connections to the California market.

Additionally,

PTI Union's responses to special interrogatories in the Maricich case establish that “Union blended and bottled certain talc-containing Dr. Scholl's® products pursuant to Merck's specifications from April 2008 until 2019” and “Union understood the talc-containing Dr. Scholl's® products it blended and bottled pursuant to Merck's specifications were intended for use in the United States generally as the Manufacturing and Supply Agreement was guided by the Food and Drug Administration and the Environmental Protection Agency. Union did not have visibility to Merck's strategy, distribution, marketing or sale of any of the talc-containing Dr. Scholl's® products” (Stewart Decl. Ex. 1 at pp. 8, 11) PTI further admitted that “At the time it began blending and bottling Dr. Scholl's® for Merck, Union understood that it was blending and bottling 100% of the U.S.

requirements of certain talc-containing Dr. Scholl's® for Merck that were named in the contracts and agreements; however, Union did not have visibility as to which geographical regions or markets Merck targeted. Further responding, the contracts and agreements speak for themselves" and "Union is unable to definitively identify the number of bottles of talc-containing Dr. Scholl's® Union blended and bottled for Merck each year from 2008 until 2019, but estimates it blended and bottled between 600,000 and 800,000 thousand bottles of talc-containing Dr. Scholl's® on average per year." (Id. at pp. 14, 17.) These admissions from PTI are evidence regarding the nature of PTI's role in the manufacture and supply of Dr. Scholl's foot powder but have little to say regarding the specific nature of PTI's contacts with California.

i.

Whether PTI's manufacturing agreements show that PTI directly targeted the California market

In the supplemental opposition, Plaintiff provides PTI's responses to special interrogatories and requests for production. (Stewart Supp. Decl., Exhs. 1-2.) The responses largely confirm the same information as the special interrogatory responses from the Maricich case. Plaintiff also provides contracts between PTI and Schering-Plough Healthcare Products, Inc. ("Schering"), MSD Consumer Care, Inc. ("Merck"), and Bayer HealthCare, LLC ("Bayer") (collectively "brand owners") dating from between 1997 and 2019. (Stewart Supp. Decl., Exhs. 3-11.) Plaintiff points to portions of the contracts that state the contracts covered the entire United States, PTI exclusively supplied 100% of the U.S. requirements for Dr. Scholl's talc, and that PTI was required to comply with all applicable federal or state laws. (Supp. Opp. at pp.8-11.) For example, PTI's 2005 agreement with Schering states that Schering agreed to "source 100% of its U.S. requirements" of Dr. Scholl's talc from PTI. (Stewart Supp. Decl., Exh. 6, p. 223.) The other agreements contain similar provisions regarding the Dr. Scholl's brand owners' exclusive use of PTI's services to serve the U.S. market generally.

Plaintiff

argues that PTI's contracts with Schering, Merck, and Bayer show that PTI purposefully availed itself of the California market because they show that PTI purposefully availed itself of the entire U.S. market, including California. Plaintiff points specifically to portions of the contracts which state that PTI exclusively manufactured 100 percent of the requirements for Dr. Scholl's talc

in the U.S. during the relevant time period. (Supp. Opp. at pp.8-11.) However, it is well-settled that a manufacturer's mere knowledge of the likelihood that a product will enter a state is insufficient, without more, to establish personal jurisdiction over that Defendant. (Jayone, supra, 31 Cal.App.5th 543, 559. ["In the products liability context, merely placing a product into the stream of commerce, even with knowledge that the product might enter the forum state, is not a sufficient basis for personal jurisdiction over a nonresident defendant.]; Dow Chemical Canada ULC v. Superior Court (2011) 202 Cal.App.4th 170, 179 ["It is not sufficient for jurisdiction in this case that the defendant Dow might have predicted or known that its products would reach California."].) Instead, the relevant inquiry is whether the defendant manufacturer attempted to purposefully "serve, directly or indirectly, the market for its product" in California. (Jayone, supra, 31 Cal.App.5th 543, 559.)

Here, the manufacturing agreements at most show that PTI knew its products would reach California because PTI agreed to manufacture Dr. Scholl's products to meet the brand owners' needs for the entire U.S., a region which includes California. The agreements contain no provisions specifically targeting the California market. Even if California is part of the region covered by the agreements, nothing about PTI's contracts indicates that it purposefully attempted to serve the California market in particular. Plaintiff argues that distribution of products throughout the United States demonstrates purposeful availment of the privileges derived from directing activities to California. This view is misguided. (Bombardier Recreational Products, Inc. v. Dow Chemical Canada ULC (2013) 216 Cal.App.4th 591, 604 [knowledge that defendant's products would be used in California, standing alone, insufficient to establish jurisdiction in California: "One principle a majority of the United States Supreme Court has agreed upon is that mere knowledge, without something more, is insufficient to establish jurisdiction in a forum state."].)

ii.

Whether PTI purposefully availed itself of the California market by complying with California regulations.

Plaintiff

also argues that PTI purposefully availed itself of the California market when it completed testing and provided information to the brand owners to comply

with California regulations. Specifically, Plaintiff provides lead testing records for Schering's products from 2005 through 2009 from West Coast Analytical, a lab in California. (Stewart Supp. Decl., Exhs. 12-15.) PTI also completed lead testing between 2012 and 2013 to comply with California Proposition 65 ("Prop 65") using another California lab, Exova. (Id., Exh. 18.)

As

discussed, mere knowledge of the likelihood that a product will enter a state is insufficient, without more, to establish personal jurisdiction over that Defendant. (Jayone, *supra*, 31 Cal.App.5th 543, 55.) Although neither party cites binding authority, the persuasive authority from federal district courts in California indicates that complying with California regulations, including proposition 65 warnings, does not itself constitute purposeful availment under California law. (See *Rojas v. Hamm*, (N.D. Cal., Aug. 12, 2019, No. 18-CV-01779-WHO) 2019 WL 3779706 at * 5 ["Compliance with Proposition 65 alone is not enough to establish personal jurisdiction in California. [Citations] The mere inclusion of the warning at the request of a purchaser is not a purposeful act directed at California."] See also *Miller v. Peter Thomas Roth, LLC* (N.D. Cal., Apr. 5, 2019, No. C 19-00698 WHA) 2019 WL 1507767 at * 3 ["As states enforce health and safety statutes and enter into preemptive settlement agreements with defendants who agree to comply and pay a fine, it is unreasonable to assume that each foreign defendant who signs a settlement agreement would open itself to personal jurisdiction akin to general jurisdiction simply by choosing to comply with state statutes."].) Accordingly, the mere fact that a defendant complies with California regulations, including proposition 65, does not establish purposeful availment.

Here, Plaintiff

directs the court's attention to an email chain from July 2013 between PTI and Merck employees discussing lead testing of talc from Merck suppliers. (Stewart Supp. Decl., Exh. 17.) In the email, Karl von Seckendorff, a PTI employee, asks a Merck employee, Todd Sharpe, for information about a lead test Merck requested:

"Merck

specifies a lead test to be performed...and lists a typical testing lab (Exova)

that could be used for this test in their method. Merck does not specify the details of the method. When we have Exova perform the lead testing, they use the method that is specified by California for Prop 65 testing...What are the method requirements for the test method? If no specifics are available, what does Merck use when they execute this test method?"

(Stewart Decl., Exh. 17 at p.83.)

Another

Merck employee, Tony Crook, explains later that Merck selected Exova as the lab to perform the Prop 65 testing because the State of California uses Exova for its testing:

"Our

position is...that we don't care what test method Horsehead uses for their CA reporting, we only recognize and act on the results determined by Excova, a California based laboratory. The 10ppm maximum was a compromise from a law suit between the Parma industry and the State of California. Excova is the Laboratory that the State of California uses. Although we may not agree with Excova's test method and/or the results of the test, we nonetheless abide by their results. The reason is simple, if we are ever sited (sic) by the State of California for being out of compliance we advise and show the test results from Excova. To give Horsehead the benefit of the doubt, if Pharma Tech is not using Excova – might consider sending samples to them for testing."

(Stewart Decl., Exh. 17 at p.82.)

PTI's

Person Most Qualified ("PMQ"), Edward Noland, reviewed this email chain and testified that Merck directed PTI to use Exova for testing and that he had no personal knowledge of Merck's reasoning for using that lab for Prop 65 testing. (Stewart Decl., Exh. 21 at 39:7-23 ["Q: Okay. What is your understanding of what is being communicated to PTI Union in this email? A: That Merck wants us to use the Exova lab to comply with the State of California. Q: Okay. And why does Merck want you to use the Exova lab?...A: I guess you'd have to ask Merck about that. Q: Is it not communicated to PTI Union within this email? A: I mean, they're citing a reason, that it complies with the State of California, but there may be other reasons that we're not aware of."].) Mr. Noland further testifies that PTI performed Prop 65 testing at the direction of the brand owners. (Id. at 41:17-42:22 ["Why would Merck be concerned with State of

California-mandated testing if the product wasn't being sold in California...A: I mean, I think it's...I don't have any information that says that the product was sold there. So I can only speak from what my knowledge is. Q: Why would PTI Union have to comply with this testing if it was not being sold in the State of California?...A: I mean, those decisions were not made by PTI. We were following the specifications and direction on the testing from the customer. So if we were told to do something from one lab...then we would use that lab and comply with the specification. Q: And the direction and specification was for PTI Union to comply with the State of California Prop 65 requirement; right?...A: No. It was to use the Exova lab.”.) Plaintiff also provides the 2008 Material Safety Data Sheet for Dr. Scholl's talc, which states that the product was non-asbestos form in compliance with Prop 65. (Stewart Decl., Exh. 16 at pp. 90, 92, 93.)

Plaintiff

also points to an email between Pepper Reed, a PTI employee, and Matt Topinka, an employee of Bayer, in which Mr. Topinka asked Ms. Reed for information including the “target fill weights” for certain items sold in California. (Stewart Supp. Decl., Exh. 19, Exh. 21 at 43:20-44:23 [“Q: Okay. What is your understanding of this email chain? A: That there are some emails between Pepper Reed, who is a customer service representative, some other individuals at PTI Union, and I believe it was Matt Topinka, who was...at the time either with Merck or Bayer – I think it was Merck – regarding some fill weights. Q: And why did Merck or Bayer need the fill weights?...A: They wanted to confirm for all – all the products that they sell in California.”].)

Plaintiff fails

to present sufficient evidence to show that PTI's participation in testing of the talc used in the manufacture of talcum powder products constituted purposeful availment of the California market. Plaintiff was required to show “a ‘regular ... flow”

’ or ‘ “regular course” ’ of sales in the forum state, and/or some additional efforts directed toward the forum state, such as ‘special state-related design, advertising, advice, [or] marketing.’ ” (L.W. v. Audi AG (2025) 108 Cal.App.5th 95 reh'g denied (Feb. 6, 2025), review denied (Apr. 23, 2025), cert. denied (U.S., Jan. 20, 2026, No. 25-349) [citing J. McIntyre Machinery, Ltd. v. Nicastro (2011) 564 U.S. 873, (conc. opn. of Breyer, J.)].)

Here,

the records of testing performed by West Coast Analytical lack evidence of the party who requested this testing and thus fail to show that PTI purposefully sought Prop 65 testing in California to target the California market. The email chain between PTI and Merck shows that PTI sent samples to Exova for testing in California to meet California Prop 65 requirements at Merck's direction. The email chain shows that Merck required lead testing to be performed on materials provided by its talc supplier, Horsehead, and that PTI followed Merck's instructions regarding which lab would perform the testing and by which method. (Stewart Decl., Exh. 17 at p.82.) Although Plaintiff argues in the supplemental opposition that PTI "actively cooperated" with Merck and other brand owners to comply with California regulations, the emails between PTI and Merck show that PTI followed Merck's instructions to send samples to Exova in California for testing. PTI's PMQ confirms that PTI does not make decisions about whether to perform product testing or where, instead deferring to its customers. (Id., Exh. 21 at 41:17-42:22.) As for the second email chain, the emails show that PTI provided fill weight information to Bayer. (Stewart Supp. Decl., Exh. 19.) Aside from providing the information Bayer requested, PTI does not appear to have played any other role in ensuring the Bayer products complied with California regulations. Plaintiff's evidence thus shows that PTI followed Merck's instructions pertaining to California Prop 65 testing and provided fill weight information to Bayer upon request to comply with California regulations. There is no evidence that PTI made deliberate efforts to ensure its products complied with California regulations in order to target the California market. As PTI points out in its supplemental reply, the evidence establishes that it did not willingly engage the California forum but interacted with California at the brand owners' request.

Accordingly, even

though PTI participated in testing to comply with California regulations, Plaintiff failed to present evidence that PTI Union's manufacture of products it knew were sold in California "reflected an effort to benefit from the California market and constituted economic activity within California" " 'as a matter of commercial actuality.' " ¿[Citation.]' " (Bridgestone Corp. v. Superior Court (2002) 99 Cal.App.4th 767, 776 - 777.) Therefore, Plaintiff failed to present sufficient evidence to satisfy her burden that PTI Union purposefully availed itself of California by manufacturing Dr. Scholl's powders which were used by California consumers. As such, PTI's motion to quash is granted.

IV.

Conclusion

Plaintiff

failed to present sufficient evidence to show that PTI Union, LLC purposefully availed itself of the California market. Accordingly, PTI Union's motion to quash is granted.

PTI

to give notice.